

Eastern Federal Lands Highway Division NEPA Categorical Exclusion Form

Project Number: FS TN ERFO CHRKE804 2020 2(3)

Date: 8/13/2025

Project Name: Repair Storm and Flood Damage on
Peavine Sheeds Creek Road

Location: Cherokee National Forest
Polk County, Tennessee

CE Category 23 CFR 771.117(d)(13): Actions described in
paragraphs (c)(26), (c)(27), and (c)(28) of this
section that do not meet the constraints in
paragraph (e) of this section.

See [23 CFR 771.117](#) for full description of CE categories, including additional requirements when applying (c)26-28.

Project Description

FHWA-EFLHD in cooperation with the U.S. Forest Service propose to repair Peavine Sheeds Creek Road (FS 221) in Cherokee National Forest that was damaged by storms in 2020. The storms resulted in significant amounts of aggregate being washed away from the roadway surface. Drainage features such as ditches, culverts and drain dips were also damaged and no longer function.

The project begins at the intersection of Peavine Sheeds Creek Road and Ladd Springs Road and goes east approximately 19.8 miles to the intersection with Little Gassaway Road. The aggregate roadway along this portion of the roadway will be reconditioned with 6-inches of aggregate surface. Some areas of the roadway will have additional fill brought in to help with the severe rutting. Areas where landslides occurred will be stabilized through the construction of MSE walls. In addition, new culverts will be installed, numerous culverts will be cleaned or replaced, ditches will be reconditioned, and dips will be established or reconditioned. At milepost 6.2 a 30-inch culvert will be replaced by a 8-foot by 4-foot a box culvert. Additionally, an aquatic organism passage (AOP) will be located at milepost 19.30, Master Pin 179, by replacing a 36-inch culvert with a 16-foot span arch culvert.

These structures provide passage through road-stream crossings for all native aquatic and riparian species to provide for robust ecological communities.

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Environmental Commitments and Mitigation Measures

- Do not clear trees greater than 8 inches in diameter on stream side of road when road edge is less than 100 feet from a stream course unless tree is specifically marked for removal. Trim tree limbs by sawing as near flush with the trunk as practicable and to a height of 14 feet above the proposed roadway surface.
- A FS fisheries biologist will be notified in advance of dewatering activities and will perform fish removals prior to the work.
- Report to the FS fisheries biologist if preexisting large wood from streams needs to be removed or if downed trees will be left in streams.

Summary of Section 7 of the Endangered Species Act Compliance

A review of the USFWS Information for Planning and Consultation (IPaC) website indicated four federal-listed species and two proposed for listing with the potential to occur within the project area. These species include the endangered gray bat (*Myotis grisescens*) and northern long-eared bat (*Myotis septentrionalis*), the tricolored bat (*Perimyotis subflavus*) is proposed for listing as endangered, the monarch butterfly (*Danaus Plexippus*) is proposed for listing as threatened, the endangered Ruth's golden aster (*Pityopsis ruthii*) and the threatened white fringeless orchid (*Platanthera integrilabia*).

The project is covered under the FS programmatic consultation with USFWS under Section 7 of the endangered species act. With the potential for tree removal during the bat's active season, the FS has determined that the project may affect and is likely to adversely affect northern long-eared bats and tricolored bats as there is a known summer roost site within or adjacent to the project area. The Incidental Take used for the proposed activities is covered in the following two documents:

Biological Opinion for Reinitiation of Consultation on the Programmatic Consultation for Activities Affecting Indiana Bats on the Cherokee National Forest to Include and Address the Northern Long-Eared Bat FWS ECOSphere Project Code: 2023-0044196 [USFWS 2023]

Conference Opinion for Proposed Activities Affecting Tricolored Bat and Little Brown Bat on the Cherokee National Forest FWS ECOSphere Project Code: 2023-0044196 [USFWS 2024]

The area where an aquatic organism passage will be constructed was further investigated as disturbance in this area will occur beyond the original clearing limits of the roadway. The area was further investigated to determine the potential for the project to affect the other listed and proposed species. Gray bats are unlikely to be present adjacent to the road as no cave habitats or

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suitable roosting habitat is present in the project area. Therefore, the project would have no effect on the species.

The Ruth's golden aster is narrowly restricted to two stretches of river in Polk County. The stream within the project area does not provide the suitable habitat for the plant. The white fringeless orchid grows in wet, low-fertility, acidic soils associated with seeps and bogs and stream banks. The species was not found during field surveys of the project area. Therefore, the project will have no effect on these two plant species.

While it is possible for the Monarch butterfly to transit the project area, it is anticipated that only small amounts of wildflowers would be disturbed during ditch reconditioning, slope stabilization, and AOP construction reducing foraging opportunities for the monarch. To reduce the risk of direct and indirect impacts, the project footprints have been minimized as much as possible. Potential impacts to foraging habitat are considered negligible due to the relatively small amount of affected acreage scattered along existing roadway.

Summary of Section 106 of the National Historic Preservation Act Compliance

The FS was the lead on Section 106 consultation with the State Historic Preservation Office (SHPO) and tribal consultation for the project under the 2022 Forest-Wide Road Maintenance Decision. The project work covered under this decision included road maintenance activities within the original clearing limits of the road. Through consultation with the Tennessee State Historic Preservation Office (SHPO) and Tribal Historic Preservation Officers, no American Indian or cultural sites were identified.

An archeological survey was conducted on May 9, 2024 in the area where an aquatic organism passage is proposed as the area of disturbance will extend beyond the original clearing limits. The survey found no cultural material within the area of potential affect.

Based on the prior consultation and the current survey, there are no known historic properties within the project area. FHWA has made a determination of no historic properties affected for the project pursuant to 36 CFR 800.5 (b) of the National Historic Preservation Act. FHWA initiated consultation with the SHPO on July 17, 2025 for the proposed work at the AOP location. SHPO concurred with the determination of July 18, 2025.

Additional Agency Coordination and Compliance

A field survey of the project area was performed in July 2024 and a biological evaluation was prepared for the project. The report indicates that there are 38 Regional Forester Sensitive Species (RFSS) that occur within Polk County.

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At the AOP location, field reconnaissance surveys observed no sensitive plant species within or adjacent to the project limits of disturbance. In addition, Forest Service resource staff reviewed the AOP location with no documented sensitive plant species near the site.

Field surveys observed no RFSS wildlife species within the AOP location. However, suitable habitat may be present, and species may use the project area when foraging. The project footprint is relatively small at 0.28 acres, the impacts from noise and human presence will be short-term, and there is availability of suitable habitat adjacent to the project area. Forest Service biologists will also perform fish removals prior to dewatering activities to mitigate impacts to fish species. Therefore, minimal impacts to RFSS wildlife species are expected. As such it has been determined that project activities may impact individuals RFSS but will not likely contribute to a trend towards federal listing or loss of viability to the population or species.

No additional compliance is required for the project. The project is covered under Forest Service Clean Water Act Silviculture Exemption and thus no permits are required. Best management practices will be employed during construction to reduce erosion and sedimentation from leaving the project site.

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Categorical Exclusion Recommendation:

On the basis of the environmental impact information in the statutory compliance file, with which I am familiar, I believe the project should be categorically excluded from further NEPA analysis.

**TIMBERLEY
BELISH**

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BELISH
Date: 2025.08.13 09:17:00
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Timberley Belish
Environmental Protection Specialist
Eastern Federal Lands Highway Division
Federal Highway Administration

Date

Categorical Exclusion Determination:

On the basis of the environmental impact information in the statutory compliance file, with which I am familiar, I am categorically excluding the described project from further NEPA analysis. The project meets the 23 CFR 771.117(a) definition of a categorical exclusion. No unusual circumstances per 23 CFR 771.117(b) apply.

KEVIN S ROSE

Digitally signed by KEVIN S
ROSE
Date: 2025.08.13 09:33:55
-04'00'

Kevin S. Rose
Environmental Team Leader
Eastern Federal Lands Highway Division
Federal Highway Administration

Date

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Appendix A: Environmental Checklist

Section 7 of the Endangered Species Act: • Are Federally-listed species potentially present in the study area? ☒ Yes, see Notesⁱ ☐ No If Yes, effects determination: ☒ No Effect ☐ May Affect, Not Likely to Adversely Affect ☒ May Affect, Likely to Adversely Affect
Section 106 of the National Historic Preservation Act: • Are historic properties known to be present in the study area? ☐ Yes ☒ No If Yes, will they be impacted by the project? ☐ Yes ☐ No • Will previously undisturbed ground be disturbed? ☐ Yes ☒ No • Effects determination: ☒ No Historic Properties Affected ☐ No Adverse Effect ☐ Adverse Effect, MOA Executed • Was tribal consultation completed? ☒ Yes ☐ No
Water and Wetlands: • Section 404 of the Clean Water Act Are impacts to Waters of the US anticipated? ☒ Yes ☐ No If Yes, approval anticipated: Cherokee NF uses the CWA silviculture exemption ☐ Nationwide Permit (NWP) ☐ Regional General Permit ☐ Individual Permit • Section 401 of the Clean Water Act ☐ NWP certified by State ☐ Individual Certification • Section 402 of the Clean Water Act (National Pollutant Discharge Elimination System) Will the land disturbance threshold likely be exceeded to require a permit and SWPPP? ☐ Yes ☐ No • Is post-construction stormwater management review/approval anticipated? ☐ Yes ☒ No • ☐ Project is consistent with Executive Order 11990, Protection of Wetlands
Floodplains: • Is the project in a FEMA floodplain? ☐ Yes ☒ No ☐ Floodplain not mapped • ☐ Project is consistent with Executive Order 11988, Floodplain Management
Section 4(f) of the USDOT Act: • Does the project meet the Section 4(f) exemption for Federal lands transportation facilities under Section 1119(c)(2) of MAP-21, 23 U.S.C. 138(a)? ☒ Yes ☐ No • Is there a use of a Section 4(f) property in the study area? ☐ Yes ☐ No If Yes, De Minimis Finding: ☐ Programmatic: ☐ Individual 4(f): ☐



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Section 6(f) of the Land and Water Conservation Fund:
- Was the property purchased with grant funds from the Land and Water Conservation Fund? ☐ Yes ☒ No - If Yes, was documentation of approval from National Park Service Director received for the conversion or replacement of 6(f) property? ☐ Yes ☐ No
Coastal Zone Management Act of 1972:
- Is the project in a Coastal Zone? ☐ Yes ☒ No - If yes, will a Federal Consistency Review be completed? ☐ Yes ☐ No
Right of Way:
- Is the project completely within the transportation facility's right-of-way? ☒ Yes ☐ No - If no, will the project require relocations or easements? ☐ Yes ☐ No
Hazardous Waste and Materials:
- Are hazardous materials or contamination exceeding regulatory thresholds (as set by U.S. EPA, County Environmental Health, etc.) present? ☐ Yes ☒ No - If Yes, is the nature and extent of the hazardous materials or contamination fully known? ☐ Yes ☐ No, plan for securing information provided in Notes
Section 7(a) of the Wild and Scenic Rivers Act:
Are there Wild and Scenic Rivers? ☐ Yes ☒ No ☐ Eligible If Yes, has review by the river-administering agency been completed? ☐ Yes ☐ No
Clean Air Act:
Is the project in a non-attainment area? ☐ Yes ☒ No If Yes, is the project on the Transportation Improvement Program(TIP)/State Implementation Plan(SIP)? ☐ Yes ☐ No
Highway Traffic and Construction Noise Regulations:
☐ The proposed project is a Type I project (highway on a new location, substantial horizontal or vertical alteration, new through or auxiliary lanes). Noise analysis is required. ☐ The proposed project is a Type II project (retrofit for noise abatement). ☒ The proposed project is a Type III project (noise analysis not required). ☐ Does not apply.
Farmland Protection Policy Act for Highway Projects:
Does the project displace, require acquisition of, or require an easement from farmland? ☐ Yes ☒ No
Does the project affect any other resources not listed above? Explain below and list anticipated permits:
Cherokee NF CWA silviculture exemption applied to the project.

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Federally-listed species per U.S. Fish and Wildlife Service's IPaC

Common Name	Scientific Name	Federal Status
Mammals		
Northern Long-eared Bat	<i>Myotis septentrionalis</i>	Endangered
Tricolored Bat	<i>Perimyotis subflavus</i>	Proposed Endangered
Gray Bat	<i>Myotis grisescens</i>	Endangered
Insects		
Monarch butterfly	<i>Danaus plexippus</i>	Proposed Threatened
Plants		
Ruth's Golden Aster	<i>Pityopsis ruthii</i>	Endangered
White Fringeless Orchid	<i>Platanthera integrilabia</i>	Threatened

References:

U.S. DOT, Federal Highway Administration (FHWA) 2024. Cherokee National Forest Peavine Sheeds Creek Road (FS 221) at Milepost 19.302 Master Pin 179, Polk County, TN. Biological Report for project TN ERFO CHRKE804 2020 – 2(3). On File at FHWA Eastern Federal Lands Division

From: [TN Help](#)
To: [Belish, Timberley \(FHWA\)](#)
Cc: emily.carpenter2@usda.gov
Subject: Emergency Relief of Federally Owned Roads in the Cherokee National Forest, Peavine Sheeds Creek Road (FSR 221) - Project # SHPO0007473
Date: Friday, July 18, 2025 5:30:11 PM
Attachments: [image](#)
[image](#)

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2025-07-18 16:29:13 CDT

Ms. Timberley Belish
FHWA Eastern Federal Lands Highway Division
timberley.belish@dot.gov

RE: Federal Highway Administration (FHWA), Emergency Relief of Federally Owned Roads in the Cherokee National Forest, Peavine Sheeds Creek Road (FSR 221), Project#: SHPO0007473, Polk County, TN

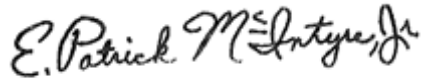
Dear Ms. Timberley Belish:

In response to your request, we have reviewed the documentation submitted by you regarding the above-referenced undertaking. Our review of and comment on your proposed undertaking are among the requirements of Section 106 of the National Historic Preservation Act. This Act requires federal agencies or applicants for federal assistance to consult with the appropriate State Historic Preservation Office before they carry out their proposed undertakings. The Advisory Council on Historic Preservation has codified procedures for carrying out Section 106 review in 36 CFR 800 (Federal Register, December 12, 2000, 77698-77739).

Considering the information provided, we find that no historic properties eligible for listing in the National Register of Historic Places will be affected by this undertaking. If project plans are changed or archaeological remains are discovered during project construction, please contact this office to determine what further action, if any, will be

necessary to comply with Section 106 of the National Historic Preservation Act. Please provide your Project # when submitting any additional information regarding this undertaking. Questions or comments may be directed to Kelley Reid, who drafted this response, at Kelley.Reid@tn.gov, +16157701099.

Sincerely,

A handwritten signature in black ink that reads "E. Patrick McIntyre, Jr." The signature is written in a cursive style with a large, stylized "M".

E. Patrick McIntyre, Jr.
Executive Director and
State Historic Preservation Officer

Ref:MSG17922450_NbzLi5yOv2sTPwsZ81m